

		Cal.App.4th 326, 335 [citing <i>Heliotis v. Schuman</i> (1986) 181 Cal.App.3d 646, 651].) "Thus, a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement." (<i>LiMandri, supra</i>, 52 Cal.App.4th at 337 [emphasis added]). With regards to fraudulent concealment, a complaint need not specify information that is uniquely within defendants' knowledge. (<i>Tenet Healthsystem Desert, Inc. v. Blue Cross of Calif.</i> (2016) 245 Cal.App.4th 821, 840) However, Plaintiff has adequately alleged a duty to disclose as Plaintiff has alleged that <u>all</u> Defendants, including the individual defendants, entered into a contractual agreement with Plaintiff. Plaintiff alleges that Defendants intentionally concealed that JMC's license was not active despite the contractual agreement wherein they represented that JMC was licensed, and that Plaintiff was unaware of this fact. The court finds that Plaintiff adequately stated a cause of action for fraudulent concealment against all Defendants. Accordingly, because Plaintiff has adequately stated fraud under Civil Code § 3294, subd. (c)(3), the motion to strike is DENIED. Defendants shall give notice. <u>Case Management Conference</u> The Case Management Conference is continued to August 27, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
3	Ruby v. Farano	Plaintiffs Paula Sanburg Ruby and Barry Ruby's Motion to Compel Further Responses to Requests for Production (Set One) is DENIED. Plaintiffs' Motion is denied for several reasons. First, a motion to compel further responses to requests for production of documents is required to be accompanied by a compliant separate statement. (Cal. Rules of Court, rule 3.1345(a)(2).) Absent from the Motion is a separate statement. "When a motion fails to include a separate statement, a trial court is 'well within its discretion' to deny the motion." (<i>In re Marriage of Moore</i> (2024) 102 Cal.App.5th 1275, 1296, citing to <i>Mills v. U.S. Bank</i> (2008) 166 Cal.App.4th 871, 893; <i>St. Mary v. Superior Court</i> (2014) 223 Cal.App.4th 762.) While the first six pages of Exhibit B to the Ruby Declaration includes a summary of why Defendant's responses suffer from "systemic defects," Exhibit B still does not comply with the Rules of Court, such that the Court acts within its discretion to deny the Motion. (<i>In re Marriage of Moore</i> (2024) 102 Cal.App.5th 1275, 1296; see <i>People ex rel. Harris v. Sarpas</i> (2014) 225 Cal.App.4th 1539, 1554 [no abuse of discretion in